



June 30, 2025

Senator Thomas Umberg
Chair of the Senate Judiciary Committee
Capitol Office, 1021 O Street, Suite 7510
Sacramento, CA 95814

Senator Roger Niello
Vice Chair of the Senate Judiciary Committee
Capitol Office, 1021 O Street, Suite 7110
Sacramento, CA 95814

Assembly Member Josh Lowenthal
California State Assembly
Capitol Office, 1021 O Street, Suite 8320
Sacramento, CA 95814

RE: Ad Trade Letter in Opposition to California AB 566

Dear Chair Umberg, Vice Chair Niello, and Assembly Member Lowenthal:

On behalf of the advertising industry, we respectfully oppose AB 566, the “California Opt Me Out Act,” in its current form, and we offer this letter to express a non-exhaustive list of concerns about this legislation.¹ We and the companies we represent, many of whom do substantial business in California, strongly believe consumers deserve meaningful privacy protections supported by reasonable government policies and responsible industry practices.

California consumers already have access to opt-out preference signals in the marketplace. Consumers can use browsers that enable such signals or download extensions or other technologies that allow them to set such signals. AB 566 is therefore unnecessary. In addition, the bill is ambiguous, would harm competition, would delegate broad authority to the California Privacy Protection Agency (“CPPA”) to issue regulations for standards that should instead be set by the legislature, and would continue to impose impracticable obligations on mobile operating system (“OS”) developers. The Governor vetoed a similar proposal under AB 3048 just last year, reasoning that imposing a technical mandate on mobile operating systems could impact the ongoing usability of mobile devices.² In vetoing the bill, the Governor expressed concern with “placing a mandate on operating system (OS) developers at this time” and stated that “. . . it’s best if design questions are first addressed by developers, rather than by regulators.”³ Despite recent amendments to the bill, its requirements would still impact mobile operating systems and devices. The Senate Judiciary Committee (“Committee”) should thus decline to advance the bill any further in the legislative process.

As the nation’s leading advertising and marketing trade associations, we collectively represent thousands of responsible companies across the country that make up and support the digital economy. These companies range from small businesses to household brands, advertising agencies, publishers, and technology providers. Our combined membership includes more than

¹ California AB 566 (2025–2026 Reg. Sess.), located [here](#) (hereinafter, “AB 566”).

² Governor Gavin Newsom’s veto letter on AB 3048, located [here](#).

³ *Id.*

2,500 companies that power the commercial Internet and the digital economy, which accounted for 18 percent of total U.S. gross domestic product (“GDP”) in 2024. By one estimate, over 1.8 million jobs in California are related to the ad-subsidized Internet. Our group has more than a decade’s worth of hands-on experience it can bring to bear on matters related to consumer privacy and controls. We would welcome the opportunity to engage with the Committee further on the points we discuss in this letter.

I. Recent Amendments to AB 566 Do Not Alleviate the Governor’s Concerns for Burdening Mobile OS Developers with Technically Impracticable Obligations

Amendments to AB 566 that replace “mobile operating system” with “browser engine” fail to address the core concern raised by Governor that the bill places undue mandates on mobile OS developers.⁴ Under AB 566, “browser engine” means a software component “that interprets and renders web content . . . transforming code into interactive visual output on a consumer’s device, including, but not limited to, Blink, Gecko, and WebKit.”⁵ These browser engines, as defined, are fundamental to mobile browsing and deeply integrated into mobile operating systems, such as iOS, which mandates WebKit, and Android with Chrome, which runs on Blink.⁶ Any application that integrates a browser feature into its application would also pull this technology mandate into the application environment. As such, shifting the bill’s focus to “browser engines” instead of operating systems preserves the same concerns that led to the Governor’s veto last year, as it would continue to impose mandates on mobile devices which have not yet been addressed by developers.

II. AB 566 Is Ambiguous and Would Harm Competition

As drafted, AB 566 would require browsers to send opt-out preference signals to all “businesses with which the consumer interacts *through the browser or browser engine*.”⁷ This language is ambiguous, as it does not clarify whether signals must also be sent to and effective on the browser itself. Mandating that browsers and browser engines deploy and maintain opt-out preference signals, *effective on all other businesses but the browsers and browser engines themselves*, could create anti-competitive results caused by how these intermediaries implement these requirements. This anti-competitive issue has been raised by regulators in other jurisdictions and should be considered by the legislature in its deliberations of AB 566.⁸ The Committee should decline to approve AB 566 because the bill is ambiguous and would harm competition.

⁴ See Governor Gavin Newsom’s veto letter on AB 3048, located [here](#).

⁵ AB 566, Sec. 2, Cal. Civ. Code § 1798.136(d)(2).

⁶ U.K. COMPETITION & MARKETS AUTH., MOBILE BROWSERS AND CLOUD GAMING MARKET INVESTIGATION, 7 (2024), located [here](#) (“In this paper, references to Apple’s ‘WebKit restriction’ are to Apple’s requirement that all browsers on iOS and iPadOS use a mandated version of Apple’s browser engine WebKit as underlying technology for the browser they offer on iOS. WebKit is also the browser engine used by Apple’s browser Safari.”); Sam Dutton, *What is Blink?*, CHROME FOR DEVELOPERS (last updated June 17, 2025), located [here](#) (“Blink serves as the rendering engine for Chromium-based browsers, including Chrome, Android WebView, Microsoft Edge, Opera, and Brave.”).

⁷ AB 566, Sec. 2, Cal. Civ. Code § 1798.136(a)(1) (emphasis added).

⁸ Foo Yun Chee, *Apple faces likely French antitrust fine for privacy tool, sources say*, REUTERS (Feb. 27, 2025), located [here](#).

III. AB 566 Tasks the CPPA with Issuing Regulations for Standards that Should be Set by the Legislature

AB 566 would give the CPPA authority to issue regulations to implement its requirements and to update definitions of key terms such as “browser” and “browser engine.”⁹ This grant of regulatory authority is too broad. The California legislature—not an administrative agency—should be the body that sets the foundational premise of who is to be regulated under applicable law. The legislature should not move AB 566 forward because the bill provides little to no direction to guide or restrain the CPPA regarding issues of key significance, such as who is subject to the bill’s terms.

IV. AB 566 Ignores Clear Legislative Text, Approved by California Consumers via Ballot Initiative, Making Opt-Out Preference Signals Optional Rather than Mandatory

As drafted, AB 566 provides broad regulatory authority that would essentially reward the CPPA for overstepping clear legislative text under the California Consumer Privacy Act of 2020 (“CCPA”) in its regulations to implement that law. The CCPA law itself clearly states that opt-out preference signals are *optional* for businesses to observe.¹⁰ Under the law, businesses may either provide a footer link to enable consumers to opt out of sales and sharing or to allow consumers to opt out via an opt-out preference signal. Through regulations, the CPPA turned this option on its head by mandating that businesses *must* honor opt-out preference signals. Through its sponsorship of AB 566, the CPPA looks to further solidify this position by taking its original extralegal interpretation of the CCPA law one step further by mandating that businesses must support opt-out preference signals for all browsers and browser engines. The California legislature should not tolerate or bless state agency regulations that contravene clear provisions in law. The people of California should also not be forced to cede their explicit intentions, as set forth in 2020 in Proposition 24, the ballot initiative that voters approved to enact the current version of CCPA law, to a state agency in this manner.

V. AB 566 Would Delegate Regulatory Authority to the CPPA at a Time When the Agency Is Already Overburdened with Regulatory Initiatives

AB 566 would delegate to the CPPA additional regulatory authority at a time when the agency is already mired with regulatory processes in several other areas, such as automated decisionmaking technology, regulations to implement the California Delete Act, and updates to existing California Consumer Privacy Act regulations. The California legislature should consider

⁹ AB 566, Sec. 2, §§ 1798.136(b), (c), and (d).

¹⁰ According to the CCPA, businesses “**may elect**” to either (a) “[p]rovide a clear and conspicuous link on the business’s internet homepages, titled ‘Do Not Sell or Share My Personal Information’” **or** (b) allow consumers to “opt out of the sale or sharing of their personal information . . . through an opt-out preference signal sent with the consumer’s consent by a platform, technology, or mechanism . . .” Cal. Civ. Code §§ 1798.135(a), (b), (b)(3). The CCPA therefore gives businesses the choice to either allow consumers to opt out through a do-not-sell link on their homepage(s) or through opt-out preference signals.



whether adding yet another regulatory directive to the CPPA's agenda would overburden the agency, especially when it already has several other regulatory processes ongoing.

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Thank you in advance for your consideration of this letter. We ask you to refrain from advancing AB 566 further in the legislative process, as its provisions are unnecessary and ambiguous, would harm competition, contravene the intentions of California consumers, would delegate broad and unchecked regulatory authority to the CPPA, and would still impose impracticable obligations on mobile OS developers.

Sincerely,

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